

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Craig Anderson	Team: Squad #07	CCRB Case #: 201600265	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/12/2016 4:00 PM	Location of Incident: East 166th Street and Tinton Avenue	18 Mo. SOL 7/12/2017	Precinct: 42		
Date/Time CV Reported Wed, 01/13/2016 8:13 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/13/2016 8:13 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM John Moise	29985	946014	042 PCT
2. SGT Carlos Rosario	4581	933294	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Moise	Abuse: PO John Moise questioned § 87(2)(b)	A . Unsubstantiated
B . SGT Carlos Rosario	Abuse: Sgt. Carlos Rosario stopped § 87(2)(b)	B . Substantiated
C . POM John Moise	Abuse: PO John Moise refused to provide his name to § 87(2)(b)	C . Unsubstantiated
D . SGT Carlos Rosario	Abuse: Sgt. Carlos Rosario refused to provide his name and shield number to § 87(2)(b)	D . Unsubstantiated
E . POM John Moise	Abuse: PO John Moise prevented § 87(2)(b) from recording video.	E . Substantiated
F . POM John Moise	Abuse: PO John Moise frisked § 87(2)(b)	F . Substantiated
G . POM John Moise	Abuse: PO John Moise searched § 87(2)(b)	G . Substantiated
H . POM John Moise	Abuse: PO John Moise threatened to arrest § 87(2)(b)	H . Unsubstantiated
I . SGT Carlos Rosario	Abuse: Sgt. Carlos Rosario threatened to arrest § 87(2)(b)	I . Unsubstantiated

Case Summary

On January 12, 2016 at approximately 4 p.m., § 87(2)(b) was walking south on Tinton Avenue in the Bronx, intending to go from his apartment to his storage unit. He carried a small box that contained a watch. Sgt. Carlos Rosario and PO John Moise of the 42nd Precinct anticrime team stopped their car next to § 87(2)(b) near the intersection with East 166th Street and Tinton Avenue. PO Moise asked § 87(2)(b) what was in his box (**Allegation A**). § 87(2)(b) informed him that it was a watch, but refused PO Moise's request to show him the contents of the box. Both officers exited their vehicle and stopped § 87(2)(b) (**Allegation B**).

§ 87(2)(b) requested both officers' names and shield numbers. PO Moise allegedly responded, "You can have the badge number, but no names" (**Allegation C**). § 87(2)(b) observed PO Moise's shield number, but Sgt. Rosario allegedly did not have his shield visible and did not respond to § 87(2)(b)'s requests for his name and shield number (**Allegation D**).

§ 87(2)(b) attempted to record the officers with his cell phone, but PO Moise allegedly grabbed the phone and kept it until the end of the encounter (**Allegation E**). PO Moise frisked § 87(2)(b) and searched at least one of his pockets (**Allegations F and G**). § 87(2)(b) also alleged that PO Moise searched his box and the inside of his wallet (**Allegation G, cont.**). § 87(2)(b) disputed the legality of the officers' actions during the stop, and both officers allegedly threatened to arrest him (**Allegations H and I**). After the search, the officers released § 87(2)(b) with no arrest or summons. § 87(2)(b) typed the officers' license plate number and PO Moise's shield number into his phone after the officers let him go.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of February 16, 2016, § 87(2)(b) has not filed a notice of claim related to this incident with the Comptroller's office (see Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed three prior complaints within the CCRB's jurisdiction. § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- Sgt. Carlos Rosario has been a member of the NYPD for twelve years and there are three prior complaints against him, none of which were substantiated. One of his prior complaints, 201301533, included a stop allegation, which was exonerated.
- PO John Moise has been a member of the NYPD for eight years and there are six prior complaints against him, none of which were substantiated. § 87(2)(g)
[REDACTED]

Potential Issues

- § 87(2)(b) observed security cameras on a NYCHA building near the location of the stop. The CCRB subpoenaed the footage, but NYCHA responded with a letter stating that they were unable to retrieve the requested footage (see Board Review 04).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED].

Allegation A – Abuse of Authority: PO John Moise questioned § 87(2)(b)

Allegation B – Abuse of Authority: Sgt. Carlos Rosario stopped § 87(2)(b)

Allegation F – Abuse of Authority: PO John Moise frisked § 87(2)(b)

Allegation G – Abuse of Authority: PO John Moise searched § 87(2)(b)

§ 87(2)(b) said that, as he walked to his storage unit, he held a small cardboard box that contained a watch. He also carried a cell phone and had his wallet and keys in his pants pockets. He had nothing else with him. He said that, when the officers' car pulled up, PO Moise asked him what was in the box. § 87(2)(b) told him it was a watch. PO Moise asked § 87(2)(b) to show him, but § 87(2)(b) said he was in a hurry and there was no need for him to open the box. The officers got out of the vehicle and PO Moise allegedly took the box from him and opened it. He then frisked § 87(2)(b)'s pants pockets and coat pockets, after which he reached inside them. He removed § 87(2)(b)'s wallet from his pants pocket and went through it until he found a document with § 87(2)(b)'s name on it (see Board Review 05).

PO Moise said that Sgt. Rosario informed him at the beginning of his tour about two robberies that occurred in the vicinity of East 166th Street and Tinton Avenue. The first robbery occurred at about 2 a.m. that day, and the second robbery occurred later that morning at a time he could not recall. The victim of the 2 a.m. robbery described the robber as a black man in dark clothing who was about 5'2" or 5'3" tall. This robbery involved an unknown weapon. PO Moise did not recall specific details about the robbery that occurred later in the morning. PO Moise said they stopped § 87(2)(b) because he matched the description of the 2 a.m. robber and because he held an object in his left arm, closely pressed against the side of his body. PO Moise could not see what the object was until after they stopped § 87(2)(b) but said that, in his experience as an anticrime officer, criminals often hold their weapons tightly against the side of their body. PO Moise also said that after § 87(2)(b) noticed the police car, he moved the object behind his back, which heightened his suspicion. Upon stopping § 87(2)(b) PO Moise saw that the object was § 87(2)(b)'s box (see Board Review 06).

PO Moise acknowledged that he asked § 87(2)(b) what was in his box, but denied opening the box. He said that § 87(2)(b) became agitated and opened the box himself to show the officers that its contents were innocuous. PO Moise recalled that the box contained a cell phone. PO Moise acknowledged frisking § 87(2)(b). He said he only reached inside one pocket, which he believed to be § 87(2)(b)'s front right pants pocket. He reached inside that pocket because it contained two bulges: one was a hard square and the other was elongated. PO Moise could not estimate the sizes of the bulges. In his interview, he said he believed that the square bulge could have been a blade

container, box cutter, or a container for a small firearm. Upon searching the pocket, the square bulge was determined to be a wallet and the elongated bulge was paperwork. PO Moise denied going through § 87(2)(b)'s wallet. PO Moise prepared a Stop, Question and Frisk report that was generally consistent with his CCRB testimony (see Board Review 07).

The complaint report for the 2 a.m. robbery that PO Moise referenced described three black men using a knife to rob a man at Union Avenue and East 166th Street – one block from the location of the stop. One robber was described as about 5'2" tall, one as 6' tall, and the other was not described in detail (see Board Review 08). According to his New York State ID, § 87(2)(b) is 5'6" tall (see Board Review 09).

Sgt. Rosario said that, at the beginning of his tour on January 12, 2016, the Field Intelligence Officer and the 42nd Precinct Detective Squad informed him about a pattern of robberies in the vicinity of East 166th Street and Tinton Avenue. There had been three or four reports of robberies in that area. Sgt. Rosario did not know when these robberies occurred, but believed at least one of the robberies occurred that day. There may have been multiple perpetrators involved in the robberies; most of the descriptions involved a black man in dark clothing carrying a firearm. There were no other details in the descriptions given to Sgt. Rosario (see Board Review 10).

Sgt. Rosario said that, when he observed § 87(2)(b) § 87(2)(b) was holding the outside of his jacket at about waist-level on his left side. Sgt. Rosario did not see any object or distinct bulge in the area that § 87(2)(b) held, but said that, based on his training and experience, robbers often hold their weapons close to their side so they can access them quickly. He said that the pattern of robberies and the position of § 87(2)(b)'s left hand were the only factors that led him to stop § 87(2)(b). He described § 87(2)(b) as a black man in a black jacket, but could not estimate his height or weight.

Sgt. Rosario did not recall § 87(2)(b) having a box with him, but he otherwise corroborated PO Moise's account of the frisk and search.

Officers are permitted to question a civilian when they have a "founded suspicion that criminality is afoot" and to detain a civilian when they have a "reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor." People v. De Bour, 386 N.Y.S.2d 375 (1976) (see Board Review 11). A general description alone is insufficient to create the reasonable suspicion necessary for police to detain a civilian. People v. Choy, 571 N.Y.S.2d 83 (1991 – 2nd Dept.) (see Board Review 12). To create a reasonable suspicion, the description must be paired with other factors, such as "temporal and spatial proximity" to a crime scene and behavior indicative of criminal activity. People v. Whittle, 2013 NY Slip Op 112 (see Board Review 13). A person placing his hand near his waistband or pocket, absent a more specific indication of a weapon – such as the outline of a gun – does not create reasonable suspicion to stop a person, even in a high crime area. People v. Fernandez, 928 N.Y.S.2d 293 (2011 – Sup. Ct. NY County) (see Board Review 14).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED] It is recommended that **Allegations B, F, and G be substantiated.**

§ 87(2)(g) [REDACTED]

Given the conflicting testimony, it is recommended that **Allegation A be unsubstantiated.**

Allegation C – Abuse of Authority: PO John Moise refused to provide his name to § 87(2)(b) [REDACTED]

Allegation D – Abuse of Authority: Sgt. Carlos Rosario refused to provide his name and shield number to § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] said that he requested both officers' names as they approached him. PO Moise allegedly responded, "You can have the badge number, but no names." § 87(2)(b) [REDACTED] observed PO Moise's shield around his neck and read the number. Sgt. Rosario did not have his shield visible and did not respond to the request. § 87(2)(b) [REDACTED] asked for the officers' names and shield numbers twice more during the encounter, but they did not respond to those requests.

PO Moise acknowledged that § 87(2)(b) [REDACTED] requested his name and shield number. He said he verbally stated his name and shield number while holding his shield up so § 87(2)(b) [REDACTED] could read it. PO Moise did not think that § 87(2)(b) [REDACTED] ever requested Sgt. Rosario's shield number, as § 87(2)(b) [REDACTED]'s request seemed to be directed only at himself. Sgt. Rosario said that § 87(2)(b) [REDACTED] requested both of their names and shield numbers, and that he and PO Moise verbally stated this information. Sgt. Rosario also said his shield was visible.

§ 87(2)(b) was diligent in recording identifying information for the officers in this incident, as evidenced by his accurately typing PO Moise’s shield number and the car’s license plate number into his phone. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C and D be unsubstantiated.**

Allegation E – Abuse of Authority: PO John Moise prevented § 87(2)(b) from recording video.

While it is undisputed that § 87(2)(b) attempted to record this incident with his phone, § 87(2)(g) § 87(2)(b) said that PO Moise “snatched” the phone out of his hand as soon as he approached him and did not give it back until the end of the encounter. PO Moise and Sgt. Rosario said that § 87(2)(b) pointed his phone at them during this incident, and they assumed he was either recording them or taking pictures. Both officers said that PO Moise never took § 87(2)(b)’s phone away from him.

Officers may not intentionally interfere with a civilian’s use of recording devices to record police interactions. NYPD FINEST Message, August 6, 2014 (see Board Review 15).

In his CCRB interview, § 87(2)(b) showed the investigator that he wrote PO Moise’s shield number and the officers’ license plate number in his phone, but said he was unable to record them or take pictures due to PO Moise taking the phone away. § 87(2)(g)

It is therefore recommended that **Allegation E be substantiated.**

Allegation H – Abuse of Authority: PO John Moise threatened to arrest § 87(2)(b)

Allegation I – Abuse of Authority: Sgt. Carlos Rosario threatened to arrest § 87(2)(b)

§ 87(2)(b) said that he told PO Moise his actions were wrong as the officer frisked and searched him. PO Moise allegedly responded, “You don’t know the law. If you want to get locked up, keep

challenging.” Sgt. Rosario and PO Moise both also allegedly said, “Do you wanna get locked up?” to § 87(2)(b) numerous times.

PO Moise and Sgt. Rosario denied threatening to arrest § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations H and I be unsubstantiated.**

Squad: 7

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date